

relations Her Government in the United Kingdom is responsible, of such style and titles as Her Majesty may think fit having regard to the said agreement, in lieu of the style and titles at present appertaining to the Crown, and to the issue by Her for that purpose of Her Royal Proclamation under the Great Seal of the Realm.

2. This Act may be cited as the Royal Titles Act, 1953. Short Title.

CHAPTER 10

An Act to make it an offence to remove surface soil from land in certain circumstances; and for purposes connected therewith. [6th May 1953.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) If—

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| <p>(a) a person removes surface soil from agricultural land with a view to the sale of that soil, and</p> <p>(b) the removal of that soil constitutes development within the meaning of the Town and Country Planning Act, 1947, and is carried out without the grant of permission required in that behalf under Part III of that Act, and</p> <p>(c) the quantity of soil so removed in any period of three months amounts to more than five cubic yards,</p> | <p>Removal of surface soil without planning permission to be an offence against this Act.
10 & 11 Geo. 6. c. 51.</p> |
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he shall be guilty of an offence against this Act.

(2) Subsection (1) of this section shall not apply to the cutting of peat or to the removal of so much surface soil as it is reasonably necessary to remove in the course of cutting turf.

(3) The reference in subsection (1) of this section to agricultural land shall include a reference to land the use of which for agriculture has been discontinued in consequence of the intention to remove surface soil from that land.

2.—(1) A person guilty of an offence against this Act shall be liable on summary conviction to a fine not exceeding one hundred pounds: Punishment of offences against this Act.

Provided that where a person is convicted of an offence against this Act and it is shown to the satisfaction of the court that the

offence was substantially a repetition or continuation of an earlier offence by him after he had been convicted of the earlier offence, he shall be liable—

- (a) to imprisonment for a term not exceeding three months; or
- (b) to a fine not exceeding fifty pounds for every day on which the earlier offence has been so repeated or continued by him or two hundred pounds (whichever is the greater),

or to both.

(2) Where an offence against this Act which has been committed by a body corporate is proved to have been committed with the consent or connivance of, or to be attributable to any neglect on the part of, any director, manager, secretary or other similar officer of the body corporate, or any person purporting to act in any such capacity, he as well as the body corporate shall be guilty of that offence and shall be liable to be proceeded against and punished accordingly.

In this subsection the expression “director”, in relation to any body corporate established by or under any enactment for the purpose of carrying on under national ownership any industry or part of an industry or undertaking, being a body corporate whose affairs are managed by members thereof, means a member of that body.

(3) In proceedings under this Act it shall be a defence to show that, before the carrying out of the operations in respect of which the proceedings are brought, it was determined or decided under section seventeen of the Town and Country Planning Act, 1947, that those particular operations would not fall within paragraph (b) of subsection (1) of the foregoing section; but a determination or decision under the said section seventeen shall not in other circumstances be treated as conclusive for the purposes of this Act.

Consent of
Attorney
General or
Director of
Public
Prosecutions
required before
prosecution.

3. No prosecution under this Act shall be brought in England or Wales save by or with the consent of the Attorney General or the Director of Public Prosecutions.

Application to
Scotland.

4. In the application of this Act to Scotland, for the references to the Town and Country Planning Act, 1947, to Part III of that Act and to section seventeen of that Act there shall be substituted references to the Town and Country Planning (Scotland) Act, 1947, to Part II of that Act and to section fifteen of that Act.

10 & 11 Geo. 6.
c. 53.

5.—(1) This Act may be cited as the Agricultural Land (Removal of Surface Soil) Act, 1953. Short title,
interpretation
extent and
commence-
ment.

(2) In this Act the expressions “agriculture” and “agricultural” have the same meanings as in the Town and Country Planning Act, 1947.

(3) This Act shall not extend to Northern Ireland.

(4) This Act shall come into operation on the fourteenth day after the passing of this Act.

CHAPTER 11

An Act to extend the power of the Secretary of State under section seven of the Harbours, Piers and Ferries (Scotland) Act, 1937, to authorise the undertaking by certain local and harbour authorities of operations in connection with marine works. [6th May 1953.]

BE it enacted by the Queen’s most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. In subsection (1) of section seven of the Harbours, Piers and Ferries (Scotland) Act, 1937 (which provides that in certain circumstances the Secretary of State may authorise a local or harbour authority to undertake, subject to the Second Schedule to the said Act, certain operations in connection with a marine work) for the words “five thousand pounds” there shall be substituted the words “twenty-five thousand pounds”. Amendment
of s. 7 of
Harbours,
Piers and
Ferries
(Scotland) Act,
1937.
(1 Edw. 8 and
1 Geo. 6. c. 28)

2. This Act may be cited as the Harbours, Piers and Ferries (Scotland) Act, 1953, and this Act and the Harbours, Piers and Ferries (Scotland) Act, 1937, may be cited together as the Harbours, Piers and Ferries (Scotland) Acts, 1937 and 1953. Short title and
citation.